

United States District Court for the District of South Carolina

Piedmont Booksellers Guild v. City of Norvale

Case No. SYN-DSC-26-CV-0107 · Declaration of Tessa Wren, Member Bookseller

Filed January 7, 2026

I, Tessa Wren, declare from personal knowledge as follows. I own Lamp & Linden Books, an independent shop in Norvale that sells new and used books and hosts small readings. I have been a member of the Piedmont Booksellers Guild since 2019 and have taken a table at most of its Cedar Commons fairs. My shop has two full-time employees, including me, and several part-time employees. Event spending comes from the same limited account used for inventory, wages, and store programs.

The Guild fairs give small shops a way to reach readers who do not regularly visit our storefronts. Admission is free. I pay a vendor contribution, transport boxes, staff my table, and sometimes contribute toward an author's honorarium. Sales vary substantially. A rainy or lightly attended fair may barely cover payroll and transportation. A busy fair can be valuable, but it is not a guaranteed profit. I participate because the event builds a reading community as well as because it sells books.

At the fairs, my ordinary customer conversations happen at my table. A scheduled author session is different: the Guild announces a time, places chairs near the reading area, and invites people to listen together. Both activities involve books and speech. Under the new ordinance, my table alone does not trigger the paid-speaker requirements, while paying an author to read does. That distinction affects whether I can afford to sponsor a presentation.

Experience at Cedar Commons

I have never witnessed a fight or violent incident at a Guild fair. I have seen an attendee become dizzy in hot weather and have seen City personnel keep a path open for responders. I have also seen vehicles wait on Market Lane during setup and groups form near the reading area. Those conditions were temporary. Vendors generally complied when the Guild director or a City employee asked them to move a box, adjust a table, or finish unloading.

The central paths are wide enough for the usual fair when the plan is followed, but the fountain and service entrance create narrow points. In my view, marked aisles, a firm unloading period, and careful placement of chairs are sensible. I cannot say what staffing the City needs for every date, and I understand that another downtown event could change traffic. I do know that the identity or literary subject of a paid author has not altered how I unload books or place my tent.

Readers move throughout the site. Some sit for a complete presentation, some stand for a few minutes, and others continue shopping. A popular local writer may gather more listeners than a visiting writer with a larger honorarium. An unpaid librarian can also draw a substantial group. For that reason, the amount or existence of payment does not reliably predict the crowd I have observed, although an announced schedule can help the organizer plan where people will be at a particular time.

Author Invitations and Timing

Small bookstores often learn about an author's availability late. Publishers build regional travel around store interest, transportation, and release dates. In 2024, my shop helped arrange a mystery writer's Guild appearance twenty-three days before the fair after another stop was added nearby. In 2025, a children's author became available less than four weeks before an event when a school visit was confirmed. Those arrangements did not require a different tent layout or larger announced attendance estimate.

For the 2026 series, I have discussed possible appearances with several writers and small presses. Some cannot commit forty-five days ahead. One press expects to know a spring travel route only after bookstore orders are collected. Another author has caregiving responsibilities and gives final confirmation closer to the date. I cannot responsibly promise an honorarium or advertise an appearance if I do not know whether the Guild may add the person to its permit.

I could invite only writers who confirm early, but that would exclude a meaningful part of the regional literary community. I could ask them to speak without pay, but I believe their labor should be compensated, and some cannot afford travel otherwise. The City's staff has not criticized any proposed book or author to me. The burden I experience comes from the lead time and the uncertainty of amendments, not from a direct demand to change a message.

Effect of the Scheduled Charges

The vendor contribution for a Guild fair is only one of my expenses. I also pay employees for loading and sales time, use a vehicle, replace damaged display materials, and carry inventory that may not sell. If the Guild spreads a \$240 event charge and multiple \$45 speaker charges among participating shops, my share may appear small in isolation, but six recurring dates magnify it. For a narrow-margin store, repeated modest amounts influence which events and authors we support.

I have told the Guild director that I may skip some 2026 fairs if contributions rise materially. That is not a threat made for this lawsuit. It reflects my shop's operating budget. I would first reduce author sponsorship, then reduce the number of dates, before risking payroll or necessary inventory purchases. Other members have different finances, but several have expressed similar concerns in meetings I attended.

The speaker fee also changes how I compare authors. Supporting a sixth paid writer adds both the honorarium and another municipal charge even if the audience estimate and site plan remain the same. That makes a lesser-known writer, who may attract only a small audience, harder to justify financially. The fair's purpose is partly to give such writers an opportunity. A later reimbursement could repay dollars but could not recreate a reading we declined to arrange or a Saturday on which my shop was absent from the Commons.

Reasons for Providing This Declaration

I support practical rules that keep the fair accessible and safe. I would comply with an assigned unloading time, an emergency-lane marking, a lawful capacity limit, or a placement change based on a conflicting event. I also can give the Guild a reasonable estimate of the books and employees I will bring. I do not claim a right to occupy any location regardless of physical conditions.

I object to a system that makes compensation for speaking the reason for added expense and requires authors to be fixed before our normal invitation process is complete. In my experience, an author's payment does not determine crowd size, and a brief late substitution does not necessarily alter traffic. I recognize that the City needs enough notice to assess a genuine change. I believe that inquiry can focus on expected attendance, location, duration, and layout rather than using the fee and deadline in the present form.

I have reviewed the City's account of routine congestion and the two minor medical calls. Those events should be described accurately, not ignored. They also should not be treated as evidence of violence or of a need to examine what authors will discuss. I offer this declaration to explain my own observations and business choices. I have not been promised a favorable result, and the Guild is not paying me for this testimony.

Under penalty of perjury, I declare that these statements are true and correct. Signed on January 7, 2026, at Norvale, South Carolina.